

section 19 of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force. 2020, c. 16, Sched. 4, s. 19.

Application under subs. (1)

- (2) An application under subsection (1) may be made,
- (a) while the tenant is in possession of the rental unit; or
 - (b) no later than one year after the tenant or former tenant ceased to be in possession of the rental unit. 2020, c. 16, Sched. 4, s. 19.

Same

- (3) If the Board makes an order requiring payment under subsection (1) and for the termination of the tenancy, the Board shall set off against the amount required to be paid by the tenant the amount of any rent deposit or interest on a rent deposit that would be owing to the tenant on termination. 2020, c. 16, Sched. 4, s. 19.

Compensation for interference with reasonable enjoyment, etc.

- (4) The costs referred to in subsection (1) are reasonable out-of-pocket expenses that the landlord has incurred or will incur as a result of an interference described in clause (1) (a) and do not include costs that the landlord may recover in an application under section 88.2 or 89. 2020, c. 16, Sched. 4, s. 19.

Application

- (5) This section applies with respect to,
- (a) an interference described in clause (1) (a), even if the interference occurred before the day section 19 of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force; and
 - (b) out-of-pocket expenses described in subsection (4), even if the expenses were incurred before that day. 2020, c. 16, Sched. 4, s. 19.

Transition, court proceedings not affected

- (6) Despite subsection 168 (2), the enactment of this section by section 19 of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* does not affect any court proceeding for an order for the payment of compensation for an

interference described in clause (1) (a) that is commenced before the day that section comes into force and has not been finally determined before that day. 2020, c. 16, Sched. 4, s. 19.

▼ **Section Amendments with date in force (d/m/y)**

Application for compensation for failure to pay utility costs

88.2 (1) A landlord may apply to the Board for an order requiring a tenant or former tenant to pay costs described in subsection (4) if,

(a) while the tenant or former tenant is or was in possession of the rental unit, the tenant or former tenant failed to pay utility costs that they were required to pay under the terms of the tenancy agreement; and

(b) in the case of a tenant or former tenant no longer in possession of the rental unit, the tenant or former tenant ceased to be in possession on or after the day section 20 of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force. 2020, c. 16, Sched. 4, s. 20.

Application under subs. (1)

(2) An application under subsection (1) may be made,

(a) while the tenant is in possession of the rental unit; or

(b) no later than one year after the tenant or former tenant ceased to be in possession of the rental unit. 2020, c. 16, Sched. 4, s. 20.

Same

(3) If the Board makes an order requiring payment under subsection (1) and for the termination of the tenancy, the Board shall set off against the amount required to be paid by the tenant the amount of any rent deposit or interest on a rent deposit that would be owing to the tenant on termination. 2020, c. 16, Sched. 4, s. 20.

Compensation for failure to pay utility costs

(4) The costs referred to in subsection (1) are reasonable out-of-pocket expenses that the landlord has incurred or will incur as a result of a tenant's or former tenant's failure to pay utility costs that they were required to pay under the terms of the

tenancy agreement. 2020, c. 16, Sched. 4, s. 20.

Application

(5) This section applies with respect to,

(a) a failure described in clause (1) (a), even if the failure occurred before the day section 20 of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force; and

(b) out-of-pocket expenses described in subsection (4), even if the expenses were incurred before that day. 2020, c. 16, Sched. 4, s. 20.

Transition, court proceedings not affected

(6) Despite subsection 168 (2), the enactment of this section by section 20 of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* does not affect any court proceeding for an order for the payment of compensation for a tenant's or former tenant's failure to pay utility costs that is commenced before the day that section comes into force and has not been finally determined before that day. 2020, c. 16, Sched. 4, s. 20.

▼ Section Amendments with date in force (d/m/y)

Application for compensation for damage

89 (1) A landlord may apply to the Board for an order requiring a tenant or former tenant to pay reasonable costs that the landlord has incurred or will incur for the repair of or, where repairing is not reasonable, the replacement of damaged property if,

(a) while the tenant or former tenant is or was in possession of the rental unit, the tenant or former tenant, another occupant of the rental unit or a person permitted in the residential complex by the tenant or former tenant wilfully or negligently causes or caused undue damage to the rental unit or the residential complex; and

(b) in the case of a tenant or former tenant no longer in possession of the rental unit, the tenant or former tenant ceased to be in possession on or after the day subsection 21 (1) of Schedule 4 to the *Protecting Tenants and Strengthening*

Community Housing Act, 2020 comes into force. 2020, c. 16, Sched. 4, s. 21 (1).

Application under subs. (1)

- (1.1) An application under subsection (1) may be made,
- (a) while the tenant is in possession of the rental unit; or
 - (b) no later than one year after the tenant or former tenant ceased to be in possession of the rental unit. 2020, c. 16, Sched. 4, s. 21 (1).

Same

- (2) If the Board makes an order requiring payment under subsection (1) and for the termination of the tenancy, the Board shall set off against the amount required to be paid by the tenant the amount of any rent deposit or interest on a rent deposit that would be owing to the tenant on termination. 2006, c. 17, s. 89 (2); 2020, c. 16, Sched. 4, s. 21 (2).

Application

- (3) This section applies with respect to,
- (a) damage described in clause (1) (a), even if the damage occurred before the day subsection 21 (1) of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force; and
 - (b) costs described in subsection (1), even if the costs were incurred before that day. 2020, c. 16, Sched. 4, s. 21 (3).

Transition, court proceedings not affected

- (4) Despite subsection 168 (2), the re-enactment of subsection (1) by subsection 21 (1) of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* does not affect any court proceeding for an order for the payment of compensation for damage to the rental unit or the residential complex that is commenced before the day that subsection comes into force and has not been finally determined before that day. 2020, c. 16, Sched. 4, s. 21 (3).

▼ Section Amendments with date in force (d/m/y)

Compensation, misrepresentation of income

90 If a landlord has a right to give a notice of termination under section 60, the landlord may apply to the Board for an order for the payment of money the tenant would have been required to pay if the tenant had not misrepresented his or her income or that of other members of his or her household, so long as the application is made while the tenant is in possession of the rental unit. 2006, c. 17, s. 90; 2013, c. 3, s. 30.

▼ Section Amendments with date in force (d/m/y)

DEATH OF TENANT

Death of tenant

91 (1) If a tenant of a rental unit dies and there are no other tenants of the rental unit, the tenancy shall be deemed to be terminated 30 days after the death of the tenant. 2006, c. 17, s. 91 (1).

Reasonable access

(2) The landlord shall, until the tenancy is terminated under subsection (1),

- (a) preserve any property of a tenant who has died that is in the rental unit or the residential complex other than property that is unsafe or unhygienic; and
- (b) afford the executor or administrator of the tenant's estate, or if there is no executor or administrator, a member of the tenant's family reasonable access to the rental unit and the residential complex for the purpose of removing the tenant's property. 2006, c. 17, s. 91 (2).

Landlord may dispose of property

92 (1) The landlord may sell, retain for the landlord's own use or otherwise dispose of property of a tenant who has died that is in a rental unit and in the residential complex in which the rental unit is located,

- (a) if the property is unsafe or unhygienic, immediately; and
- (b) otherwise, after the tenancy is terminated under section 91. 2006, c. 17, s. 92 (1).

Same

(2) Subject to subsections (3) and (4), a landlord is not liable to any person for selling, retaining or otherwise disposing of the property of a tenant in accordance with subsection (1). 2006, c. 17, s. 92 (2).

Same

(3) If, within six months after the tenant's death, the executor or administrator of the estate of the tenant or, if there is no executor or administrator, a member of the tenant's family claims any property of the tenant that the landlord has sold, the landlord shall pay to the estate the amount by which the proceeds of sale exceed the sum of,

- (a) the landlord's reasonable out-of-pocket expenses for moving, storing, securing or selling the property; and
- (b) any arrears of rent. 2006, c. 17, s. 92 (3).

Same

(4) If, within the six-month period after the tenant's death, the executor or administrator of the estate of the tenant or, if there is no executor or administrator, a member of the tenant's family claims any property of the tenant that the landlord has retained for the landlord's own use, the landlord shall return the property to the tenant's estate. 2006, c. 17, s. 92 (4).

Agreement

(5) A landlord and the executor or administrator of a deceased tenant's estate may agree to terms other than those set out in this section with regard to the termination of the tenancy and disposal of the tenant's property. 2006, c. 17, s. 92 (5).

SUPERINTENDENT'S PREMISES

Termination of tenancy

93 (1) If a landlord has entered into a tenancy agreement with respect to a superintendent's premises, unless otherwise agreed, the tenancy terminates on the day on which the employment of the tenant is terminated. 2006, c. 17, s. 93 (1).

Same

(2) A tenant shall vacate a superintendent's premises within one week after his or her tenancy is terminated. 2006, c. 17, s. 93 (2).

No rent charged for week

(3) A landlord shall not charge a tenant rent or compensation or receive rent or compensation from a tenant with respect to the one-week period mentioned in subsection (2). 2006, c. 17, s. 93 (3).

Application to Board

94 The landlord may apply to the Board for an order terminating the tenancy of a tenant of superintendent's premises and evicting the tenant if the tenant does not vacate the rental unit within one week of the termination of his or her employment. 2006, c. 17, s. 94.

PART V.1

TERMINATION OF OCCUPANCY — NON-PROFIT HOUSING CO-OPERATIVES

INTERPRETATION

Interpretation

Definitions

94.1 (1) In this Part,

"housing charges" has the same meaning as in the *Co-operative Corporations Act*; ("frais de logement")

"member", except in the phrase, "members of his or her household", means a member as defined in the *Co-operative Corporations Act* or a person whose membership and occupancy rights in a co-operative have terminated or expired in accordance with that Act; ("membre")

"regular monthly housing charges" includes the amount of any consideration paid or given or required to be paid or given by or on behalf of a member to a co-operative or the co-operative's agent for the right to occupy a member unit and

for any services and facilities and any privilege, accommodation or thing that the co-operative provides for the member in respect of the occupancy of the member unit, whether or not a separate charge is made for services and facilities or for the privilege, accommodation or thing, but does not include one-time, occasional or irregular charges, deposits, penalties or fines; ("frais de logement mensuels ordinaires")

"residential complex" means a building or related group of buildings in which one or more member units are located and includes all common areas and services and facilities available for the use of its residents. ("ensemble d'habitation") 2013, c. 3, s. 31.

Non-profit housing co-operative and member not a landlord-tenant relationship

(2) Nothing in this Part, and nothing elsewhere in this Act, shall be construed as altering the relationship between a non-profit housing co-operative and a member and, in particular, the relationship shall not be construed as being one of a landlord and tenant. 2013, c. 3, s. 31.

▼ Section Amendments with date in force (d/m/y)

NOTICE OF TERMINATION OF OCCUPANCY BY CO-OPERATIVE

Notice of termination of occupancy

94.2 (1) After terminating a member's membership and occupancy rights in a non-profit housing co-operative under section 171.8 of the *Co-operative Corporations Act*, the co-operative may give the member notice of termination of the member's occupancy of a member unit under this Act in any of the following circumstances:

1. The member has persistently failed to pay the regular monthly housing charges on the date they became due and payable.
2. The member unit is in a residential complex described in paragraph 1, 2 or 3 of subsection 7 (1) and the member has ceased to meet the qualifications required for occupancy of the member unit.
3. The member fails to pay the regular monthly housing charges lawfully owing

with respect to the member unit.

4. The member unit is in a residential complex described in paragraph 1, 2 or 3 of subsection 7 (1) and the member has knowingly and materially misrepresented his or her income or that of other members of his or her household.

5. The member or another occupant of the member unit commits an illegal act or carries on an illegal trade, business or occupation or permits a person to do so in the member unit or the residential complex.

6. The member, another occupant of the member unit or a person whom the member permits in the member unit or the residential complex wilfully or negligently causes undue damage to the member unit or the residential complex.

7. The member, another occupant of the member unit or a person whom the member permits in the member unit or the residential complex,

i. wilfully causes undue damage to the member unit or the residential complex, or

ii. uses the member unit or the residential complex in a manner that is inconsistent with use as residential premises and that causes or can reasonably be expected to cause damage that is significantly greater than the damage that is required in order to give a notice of termination under subparagraph i or paragraph 6.

8. The conduct of the member, another occupant of the member unit or a person permitted in the residential complex by the member is such that it substantially interferes with the reasonable enjoyment of the residential complex for all usual purposes by the co-operative or another member of the co-operative or occupant of the residential complex or substantially interferes with another lawful right, privilege or interest of the co-operative or another such member or occupant.

9. An act or omission of the member, another occupant of the member unit or a person permitted in the residential complex by the member seriously impairs or has seriously impaired the safety of any person and the act or omission occurs in the residential complex.

10. The number of persons occupying the member unit on a continuing basis results in a contravention of health, safety or housing standards required by law.

11. A notice of termination was given to the member for a circumstance described in paragraph 6, 8 or 10 and more than seven days but less than six months after the notice was given, an activity takes place, conduct occurs or a situation arises that constitutes the same circumstance under which the previous notice of termination was given. 2013, c. 3, s. 31; 2017, c. 13, s. 18.

Deemed termination of membership and occupancy rights

(2) Despite subsections 171.8 (1) and 171.12.1 (2) of the *Co-operative Corporations Act*, where the circumstance described in paragraph 11 of subsection (1) exists, the member's membership and occupancy rights are deemed to have been terminated for the purpose of giving a notice of termination of the member's occupancy of a member unit under this section. 2013, c. 3, s. 31.

Note: On a day to be named by order of the Lieutenant Governor in Council, section 94.2 of the Act is amended by adding the following subsection: (See: 2025, c. 14, Sched. 12, s. 8)

Persistent late payment

(2.1) For the purposes of paragraph 1 of subsection (1), what constitutes a persistent failure to pay the regular monthly housing charges on the date they became due and payable shall be determined in accordance with the regulations, if any. 2025, c. 14, Sched. 12, s. 8.

Rent-geared-to-income assistance

(3) For greater certainty, paragraph 2 of subsection (1) does not authorize a non-profit housing co-operative to give a member notice of termination of the member's occupancy of a member unit on the ground that the member has ceased to be eligible for, or has failed to take any step necessary to maintain eligibility for, rent-geared-to-income assistance as defined in section 38 of the *Housing Services Act, 2011*. 2016, c. 25, Sched. 5, s. 2.

▼ Section Amendments with date in force (d/m/y)
